



SUPREME COURT OF GEORGIA
Case No. S25U0846

June 9, 2025

The Honorable Supreme Court met pursuant to adjournment.

The following order was passed:

IN RE: MOTION TO AMEND 2025-6.

The Court having considered the 2025-6 Motion to Amend the Rules and Regulations for the Organization and Government of the State Bar of Georgia, it is ordered that the following rule be amended, effective July 10, 2025: Part IV – Georgia Rules of Professional Conduct, Chapter 1, Rule 4-102 (d) (Disciplinary Action; Levels of Discipline; Georgia Rules of Professional Conduct), and Rule 9.4 (Jurisdiction and Reciprocal Discipline).

The amended rule will read as follows:

**PART IV
GEORGIA RULES OF PROFESSIONAL CONDUCT**

**CHAPTER 1
GEORGIA RULES OF PROFESSIONAL CONDUCT AND
ENFORCEMENT THEREOF**

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**Rule 4-102. Disciplinary Action; Levels of Discipline; Georgia
Rules of Professional Conduct**

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(d) The Table of Contents, Preamble, Scope, Terminology and Definitions and Georgia Rules of Professional Conduct are as follows:

Contents

Preamble and Scope

Rules: Client-Lawyer Relationship

- 1.0 Terminology and Definitions
- 1.1 Competence
- 1.2 Scope of Representation and Allocation of Authority
Between Client and Lawyer
- 1.3 Diligence
- 1.4 Communication
- 1.5 Fees
- 1.6 Confidentiality of Information
- 1.7 Conflict of Interest: General Rule
- 1.8 Conflict of Interest: Prohibited Transactions
- 1.9 Conflict of Interest: Former Client
- 1.10 Imputed Disqualification: General Rule
- 1.11 Successive Government and Private Employment
- 1.12 Former Judge or Arbitrator

- 1.13 Organization as Client
- 1.14 Client With Diminished Capacity
- 1.15(I) Safekeeping Property – General
- 1.15(II) Safekeeping Property – Trust Account and IOLTA
- 1.15(III) Record Keeping; Trust Account Overdraft Notification;
Examination of Records
- 1.16 Declining or Terminating Representation
- 1.17 Sale of Law Practice
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- 3.2 Expediting Litigation
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- 5.5 Unauthorized Practice of Law: Multijurisdictional Practice of Law
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6.3 Membership in Legal Services Organization

6.4 Law Reform Activities Affecting Client Interests

6.5 Nonprofit & Court-Annexed Limited Legal Services Programs

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7.1 Communications Concerning a Lawyer's Services

7.2 Advertising

7.3 Direct Contact with Prospective Clients

7.4 Communication of Fields of Practice

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8.1 Bar Admission and Disciplinary Matters

8.2 Judicial and Legal Officials

8.3 Reporting Professional Misconduct

8.4 Misconduct

8.5 Disciplinary Authority; Choice of Law

Miscellaneous

9.1 Reporting Requirements

9.2 Restrictions on Filing Disciplinary Complaints

9.3 Cooperation with Disciplinary Authority

9.4 Jurisdiction and Reciprocal Discipline

9.5 Lawyer as a Public Official

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Rule 9.4. Jurisdiction and Reciprocal Discipline

(a) Jurisdiction. Any lawyer admitted to practice law in this jurisdiction, including any formerly admitted lawyer with respect to acts committed prior to resignation, suspension, disbarment, or removal from practice on any of the grounds provided in Rule 4-104 of the State Bar of Georgia, or with respect to acts subsequent thereto that amount to the practice of law or constitute a violation of the Georgia Rules of Professional Conduct or any Rules or Code subsequently adopted by the Supreme Court of Georgia in lieu thereof, and any Domestic or Foreign Lawyer specially admitted by a court of this jurisdiction for a particular proceeding and any Domestic or Foreign Lawyer who practices law or renders or offers to render any legal services in this jurisdiction, is subject to the disciplinary jurisdiction of the State Bar of Georgia.

(b) Reciprocal Discipline. Upon being suspended or disbarred in another jurisdiction, a lawyer admitted to practice in Georgia shall promptly inform the Office of the General Counsel of the State

Bar of Georgia of the discipline. Upon notification from any source that a lawyer within the jurisdiction of the State Bar of Georgia has been suspended or disbarred in another jurisdiction, the Office of the General Counsel shall obtain a certified copy of the disciplinary order and file it with the Clerk of the State Disciplinary Boards. Nothing in this Rule shall prevent a lawyer suspended or disbarred in another jurisdiction from filing a Petition for Voluntary Discipline under Rule 4-227.

(1) Upon receipt of a certified copy of an order demonstrating that a lawyer admitted to practice in Georgia has been disbarred or suspended in another jurisdiction, the Clerk of the State Disciplinary Boards shall assign the matter a State Disciplinary Board docket number.

(2) The Clerk of the State Disciplinary Boards shall issue a notice to the respondent that shall show the date of the disbarment or suspension in the other jurisdiction and shall include a copy of the order therefor. The notice shall direct the respondent to show cause to the State Disciplinary Review Board within 30 days from service of the notice why the imposition of substantially similar discipline in this jurisdiction would be unwarranted. The notice shall be served upon the respondent pursuant to Rule 4-203.1, and any response thereto shall be served upon the Office of the General Counsel.

(3) If neither party objects within 30 days, the State Disciplinary Review Board shall recommend imposition of substantially similar discipline and shall file that recommendation with the Clerk of the State Disciplinary Boards within 60 days after the time for the filing of objections expires. A copy of the State Disciplinary Review Board's report and recommendation shall be served upon the respondent, and the Clerk shall file the record in the case with the Supreme Court of Georgia within ten days after the report and recommendation is filed. The Office of the General Counsel or the respondent may object to imposition of substantially

similar discipline by demonstrating that:

(i) The procedure was so lacking in notice or opportunity to be heard as to constitute a deprivation of due process; or

(ii) There was such infirmity of proof establishing the misconduct as to give rise to the clear conviction that the court could not, consistent with its duty, accept as final the conclusion on that subject; or

(iii) The discipline imposed would result in grave injustice or be offensive to the public policy of the jurisdiction; or

(iv) The reason for the original disciplinary status no longer exists; or

(v)

(A) The conduct did not occur within the state of Georgia; and,

(B) The discipline imposed by the foreign jurisdiction exceeds the level of discipline allowed under these Rules; or

(vi) The discipline would if imposed in identical form be unduly severe or would require action not contemplated by these Rules.

If the State Disciplinary Review Board finds that it clearly appears upon the face of the record from which the discipline is predicated that any of those elements exist, the State Disciplinary Review Board shall make such other recommendation to the Supreme Court of Georgia as it deems appropriate. The burden is on the party seeking different discipline in this jurisdiction to demonstrate that the imposition of the same discipline is not appropriate.

(4) The State Disciplinary Review Board may consider exceptions from either the Office of the General Counsel or the respondent on the grounds enumerated at paragraph (b) (3) of this Rule and may in its discretion grant oral argument. Exceptions and briefs shall be filed with the State Disciplinary Review Board within 30 days of service of the Notice of Reciprocal Discipline. The responding party shall have 30 days after service of the exceptions within which to respond. The State Disciplinary Review Board shall file its report and recommendation with the Clerk of the State Disciplinary Boards within 60 days of receiving the response to exceptions. A copy of the State Disciplinary Review Board's report and recommendation shall be served upon the respondent, and the Clerk shall file the record in the case with the Supreme Court of Georgia within 10 days after the report and recommendation is filed.

(5) In all other aspects, a final adjudication in another jurisdiction that a lawyer, whether or not admitted in that jurisdiction, has been guilty of misconduct, or has been removed from practice on any of the grounds provided in Rule 4-104 of the State Bar of Georgia, shall establish conclusively the misconduct or the removal from practice for purposes of a disciplinary proceeding in this State.

(6) Discipline imposed by another jurisdiction but of a lesser nature than disbarment or suspension may be considered in aggravation of discipline in any other disciplinary proceeding.

(7) For good cause, the Chair of the State Disciplinary Review Board in a reciprocal discipline proceeding may make an interim recommendation to the Supreme Court of Georgia that the respondent be immediately suspended pending final disposition.

(8) For purposes of this Rule, the word "jurisdiction" means any State, Territory, country, or federal court.

The maximum penalty for a violation of this Rule is disbarment.

Comment

[1] If a lawyer suspended or disbarred in one jurisdiction is also admitted in another jurisdiction and no action can be taken against the lawyer until a new disciplinary proceeding is instituted, tried, and concluded, the public in the second jurisdiction is left unprotected against a lawyer who has been judicially determined to be unfit. Any procedure that so exposes innocent clients to harm cannot be justified. The spectacle of a lawyer disbarred in one jurisdiction yet permitted to practice elsewhere exposes the profession to criticism and undermines public confidence in the administration of justice.

[2] Reserved.

[3] The imposition of discipline in one jurisdiction does not mean that Georgia and every other jurisdiction in which the lawyer is admitted must necessarily impose discipline. The State Disciplinary Review Board has jurisdiction to recommend reciprocal discipline when a lawyer is suspended or disbarred in a jurisdiction in which the lawyer is licensed or otherwise admitted.

[4] A judicial determination of misconduct by the respondent in another jurisdiction is conclusive, and not subject to re-litigation in the forum jurisdiction. The State Disciplinary Review Board should recommend substantially similar discipline unless it determines, after review limited to the record of the proceedings in the foreign jurisdiction, that one of the grounds specified in paragraph (b) (3) exists.

[5] For purposes of this Rule, the suspension or placement of a lawyer on inactive status in another jurisdiction because of want of sound mind, senility, habitual intoxication or drug addiction, to the extent of impairment of competency as a lawyer shall be considered a disciplinary suspension under the Rules of the State Bar of Georgia.

SUPREME COURT OF THE STATE OF GEORGIA

Clerk's Office, Atlanta

I certify that the above is a true extract from the minutes of the Supreme Court of Georgia.

Witness my signature and the seal of said court hereto affixed the day and year last above written.

 , Clerk